

Court No. - 3

Case :- WRIT - C No. - 11051 of 2022

Petitioner :- M/S N.K. Enterprises

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Brijesh Kumar Pandey

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard Sri Brijesh Kumar Pandey, learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Rajesh Yadav, learned counsel for the respondent No.2.

This writ petition has been filed praying for the following relief:

"a) Issue a writ, or nature of certiorari, quashing the recovery citation 27.11.2020 issued by Tehsildar Tehsil sadar District Rampur whereby demanding Rs-231908 + others., to meet the ends of justice, so the justice may be done

b) Issue a writ, order or direction in the nature of mandamus directing to the Respondent to restore the electricity connection, after depositing the electricity dues as directed by this Hon'ble court, to meet the ends of justice,"

Sri Rajesh Yadav, learned counsel for the respondent No.2/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent No.2, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 27.5.2022

NLY